

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stacy Paver	Team: Team # 1	CCRB Case #: 200716166	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 10/30/2007 11:56 PM	Location of Incident: Bergen Street, § 87(2)(b)		18 Mo. SOL 4/30/2009	Precinct: 77	
Date/Time CV Reported Wed, 10/31/2007 7:15 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/05/2007 3:42 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jay Wolsky	04353	933487	077 DET
2. POM Joseph Brunetti	23559	918633	077 DET

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Brunetti	Abuse: PO Joseph Brunetti stopped § 87(2)(b)	A . Exonerated
B . POM Joseph Brunetti	Force: PO Joseph Brunetti pointed his gun at § 87(2)(b)	B . Exonerated
C . POM Joseph Brunetti	Abuse: PO Joseph Brunetti frisked § 87(2)(b)	C . Exonerated
D . POM Joseph Brunetti	Abuse: PO Joseph Brunetti searched § 87(2)(b)	D . Substantiated
E . POM Jay Wolsky	Force: PO Jay Wolsky used physical force against § 87(2)(b)	E . Substantiated
F . POM Jay Wolsky	Abuse: PO Jay Wolsky refused to provide his name to § 87(2)(b)	F . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Synopsis

On October 31, 2007, at approximately 7:15 AM, § 87(2)(b) filed a telephone complaint with the Internal Affairs Bureau against NYPD officers on behalf of his employee, § 87(2)(b) (encl. 10a-b). § 87(2)(b) was not present for the incident in question. The CCRB received IAB Log # 07-41920 regarding this case on November 5, 2007 (encl. 11a-b).

On October 30, 2007, at approximately 11:20 PM, § 87(2)(b) was observed holding what appeared to be an assault rifle outside of his home, which is located at § 87(2)(b) in Brooklyn. PO Joseph Brunetti, and PO Jay Wolsky, both assigned to the 77th Precinct Detective Bureau, observed § 87(2)(b) standing in a close proximity to § 87(2)(b). § 87(2)(b) then ran down Bergen Street § 87(2)(b). PO Brunetti chased § 87(2)(b) down Bergen Street and instructed him to stop (**Allegation A**). § 87(2)(b) lay face-down on the ground. § 87(2)(b) alleged that PO Brunetti pointed his gun at him when the officer approached him (**Allegation B**). PO Brunetti frisked § 87(2)(b) on the outside of his jacket and pants pockets and frisked his book bag (**Allegation C**). PO Brunetti did not feel any guns or weapons on § 87(2)(b) person or in his bag. PO Brunetti then searched inside of § 87(2)(b) s pants pockets, jacket pockets, and his book bag (**Allegation D**). Nothing was recovered during the search. After § 87(2)(b) was searched, PO Wolsky arrived at the location, ran up to § 87(2)(b) and kicked him in the left side of his face near his jaw (**Allegation E**).

After further investigation, officers learned that the assault rifle was actually an imitation assault rifle which § 87(2)(b) used as a prop in his movie productions. § 87(2)(b) alleged that he asked PO Wolsky for his name and PO Wolsky did not provide it (**Allegation F**). § 87(2)(b) was not arrested nor was he issued a summons. As a result of this incident § 87(2)(b) sustained bruising and an injury to his right lower jaw, which made contact with the ground after he was kicked on the left side of his face. § 87(2)(b) sought medical treatment at § 87(2)(b) presenting at about § 87(2)(b) and returned to § 87(2)(b) on § 87(2)(b) (encl. 24a-y). § 87(2)(a) PHL § 18(6) § 87(4-b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is therefore recommended that **Allegations A, B, and C** be closed as *Exonerated*. § 87(2)(g)

It is therefore recommended that **Allegation D** be closed as *Substantiated*. § 87(2)(g)

It is therefore recommended that **Allegation E** be closed as *Substantiated*. § 87(2)(g)

it is therefore recommended that **Allegation F** be closed as *Unsubstantiated*. § 87(4-b) § 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) provided a detailed telephone statement to Investigator Paver on November 16, 2007 (encl. 12). He also provided a statement at the CCRB on November 28, 2007 (encl. 13a-g). § 87(2)(g)

On October 30, 2007, at approximately midnight, § 87(2)(b) left his grandmother's house, which is located at § 87(2)(b) in Brooklyn. He did not hold anything in either hand aside from his cell phone, and he wore a book bag on his back that he described as a Nike sports book bag with strings as the straps. He had a T-shirt, a USB card, ropes, and a Compact Disc inside of his book bag. He walked alone to the bus stop located at § 87(2)(b) and Atlantic Avenue and spoke on his cell phone. He did not speak with anyone on the street, gesture to anyone, nor did he make physical contact with anyone. § 87(2)(b) briefly waited for the bus, which did not come. He decided to walk toward a different bus stop, which was located on § 87(2)(b). While he walked there he did not observe anyone. When he arrived at the second bus stop, which was approximately two houses away from the corner of the street, he waited for the bus. He remained on his cellular phone and waited for the bus for approximately five minutes. While he waited, he observed § 87(2)(b) (a stranger to § 87(2)(b) identified through the investigation) enter the house that is directly in front of the bus stop. § 87(2)(b) did not say anything to § 87(2)(b). No one else was at the bus stop. § 87(2)(b) estimated that he stood approximately ten feet from the house § 87(2)(b) entered.

After approximately ten seconds, § 87(2)(b) exited the house and held a machine gun in his hand § 87(2)(b) described the gun as an "army gun"). § 87(2)(b) stared at § 87(2)(b) and then attempted to load the gun. § 87(2)(b) feared § 87(2)(b) was going to kill or rob him. § 87(2)(b) dropped the clip, picked it up, and then ran to a parking lot on the side of the house he exited. § 87(2)(b) disappeared behind a parked burgundy vehicle.

When § 87(2)(b) went to the parking lot on the side of the house, § 87(2)(b) began to walk away from the location. He explained that he stepped out into the middle of the street, approximately five feet off of the sidewalk, on § 87(2)(b) and walked toward Bergen Street. § 87(2)(b) did not see § 87(2)(b) again after he ran into the parking lot. When § 87(2)(b) reached the corner of § 87(2)(b) § 87(2)(b) he turned left and ran toward the direction of § 87(2)(b) on Bergen Street. Half of the way down Bergen Street § 87(2)(b) § 87(2)(b) heard footsteps behind him for approximately two seconds. He initially believed it to be § 87(2)(b) with the gun. He then heard, "Stop, police." § 87(2)(b) did not hear any sirens at any time. He never looked back until he heard the command to stop. It took approximately five seconds to get from § 87(2)(b) to where he was commanded to stop. He stopped in front of a four-family house with trees in front of it on the right side of the block from where he approached. § 87(2)(b) was told only one time to stop and he stopped immediately. PO Brunetti, identified through the investigation, told § 87(2)(b) to get down on the ground and § 87(2)(b) complied. PO Brunetti was the only officer present and he had his gun pointed at § 87(2)(b).

PO Brunetti asked him, "Why were you running, buddy?" § 87(2)(b) responded, "[I] saw a guy with a big gun." PO Brunetti then asked § 87(2)(b) if he heard the siren. § 87(2)(b) replied that he did not hear a siren because there was not one on. PO Brunetti asked, "You saw police, so why did you run?" § 87(2)(b) replied that he did not see police and stated, "Why would I stand there and get shot? I didn't see no cops."

As § 87(2)(b) was still lying on the ground, PO Brunetti frisked § 87(2)(b) and then searched him. PO Brunetti frisked § 87(2)(b)'s pants pockets and jacket. Nothing was in his right front pocket. He had approximately two dollars in his left front pocket, a wallet in his right back pocket, and he did not have anything in his left back pocket. When he was searched, PO Brunetti did not take anything out of his pockets; he only slightly reached into each one to feel and felt only his wallet but never opened it. § 87(2)(b) pleaded with PO Brunetti to check his identification because he told them they have the wrong person, but PO Brunetti did not check his identification. PO Brunetti then searched § 87(2)(b)'s jacket and took out keys from the outside front left pocket. PO Brunetti searched his book bag, taking everything out. Inside of the book bag was a T-shirt, ropes (weighted ten pounds for training in boxing), miscellaneous papers, and a USB cord. After he completed searching him, PO Brunetti handcuffed him. § 87(2)(b) was still lying on the ground when he was handcuffed. PO Brunetti never issued him any commands. § 87(2)(b) did not resist when he was handcuffed and he stated that when he observed PO Brunetti take his handcuffs out, he voluntarily placed his hands behind his back. PO Brunetti kept his knee on § 87(2)(b)'s back while he handcuffed him. After he was handcuffed, PO Brunetti remained on the ground momentarily with his knee on § 87(2)(b)'s back. § 87(2)(b) asked PO Brunetti if he saw a male with a gun.

Within seconds, § 87(2)(b) observed PO Wolsky, identified through the investigation, drive past him and PO Brunetti in a black unmarked Ford. PO Wolsky drove fast, reversed the car, and stopped the vehicle approximately seven feet away from where he and PO Brunetti were. PO Wolsky did not have any verbal interaction with PO Brunetti. PO Wolsky exited the patrol car, walked quickly toward § 87(2)(b) immediately pulled his leg back, did not say anything, and kicked § 87(2)(b) on his left jaw. When PO Wolsky kicked his left jaw, § 87(2)(b)'s face was already tilted to the right so when he was kicked, his right jaw hit the ground. As a result of the kick, § 87(2)(b) was bleeding and had pain in his jaw. PO Wolsky then told § 87(2)(b) to sit up. § 87(2)(b) sat on the ground while he was handcuffed. § 87(2)(b) identified through the investigation, exited the lower level of the house in front of which § 87(2)(b) was stopped. He walked out of the house with a cigar in his mouth and offered PO Wolsky a cigar. PO Wolsky declined. § 87(2)(b) stayed outside for approximately ten minutes and then went back into his house.

While he sat on the sidewalk, § 87(2)(b) asked PO Wolsky, "Was that necessary?" in regard to kicking him in the face. PO Wolsky told § 87(2)(b) that he thought he was harassing his partner. § 87(2)(b) stated that he had handcuffs on and his hands were behind his back so he could not have been doing anything. He then asked PO Wolsky what his name was. PO Wolsky did not respond and walked toward marked patrol car #2966, which pulled up to the location at that time. Two unidentified officers in uniform were in the vehicle. The driver was described as a white male with black hair, and weighed 175 pounds. The other unidentified officer, of an unknown race, was skinny, with blond-brown hair, and was 140 pounds. They exited their vehicle and looked at § 87(2)(b) but never said anything to him.

§ 87(2)(b) was commanded to stand up by PO Wolsky and he leaned against the gate that is in front of the house where he was stopped. PO Brunetti and an unidentified officer left to look for § 87(2)(b). § 87(2)(b) stood by the gate with PO Wolsky and an unidentified officer. While they stood, § 87(2)(b) asked PO Wolsky repeatedly to check his identification. PO Wolsky eventually took § 87(2)(b)'s identification and wrote his name in a notepad. § 87(2)(b) verbally provided his mother's address to PO Wolsky, which is different from the address on his license.

PO Brunetti and an unidentified officer returned and PO Brunetti and PO Wolsky spoke with one another. PO Brunetti told § 87(2)(b) that he thought he and § 87(2)(b) were together. § 87(2)(b) stated that he ran because he saw § 87(2)(b) holding a gun and he did not see the police. § 87(2)(b) stated that PO Brunetti and PO Wolsky told him that they saw the individual with a gun themselves and § 87(2)(b) stated that his physical appearance did not resemble § 87(2)(b) and he would not have been confused for § 87(2)(b). Although § 87(2)(b) stated that he stood approximately ten feet away from § 87(2)(b) when he held a gun and it could have looked like they were together, § 87(2)(b) was on his cell phone and was not engaged in conversation with § 87(2)(b).

§ 87(2)(b) realized he had an injury while he stood against the gate when PO Wolsky took one of § 87(2)(b)'s T-shirts and wiped the blood off of his chin on his shirt. § 87(2)(b) overheard PO Wolsky and PO Brunetti debate whether they should take § 87(2)(b) to the station because of the injury to his chin. § 87(2)(b) did not request medical attention because he did not know the extent of his injury. Before the officers left, they told him, "You go wherever you want; we don't care where you go." When PO Brunetti and PO Wolsky left, he observed that PO Wolsky was the driver and PO Brunetti was in the passenger seat.

§ 87(2)(b) did not have any weapons on his person. He was not arrested, nor was he issued a summons. The day after the incident, § 87(2)(b) felt pain in his jaw and sought medical attention.

On the morning of § 87(2)(b), § 87(2)(b) went to § 87(2)(b) in Brooklyn § 87(2)(b).
On § 87(2)(b), he returned to the hospital § 87(2)(b). § 87(2)(a) PHL § 18(6)

Results of Investigation

Witness Statements

Canvass/ Attempts to Contact Witnesses

On January 23, 2008, Investigator Stacy Paver and Investigator Kathryn Duffy conducted a canvass on § 87(2)(b) in Brooklyn to locate witnesses to this incident. § 87(2)(b) who resides at § 87(2)(b) in Brooklyn, stated that she recalled this incident and identified her neighbor as a witness to the incident as well. § 87(2)(b)'s neighbor was not home at the time of the canvass and § 87(2)(b) would not provide his name or telephone number and stated that she would provide him with the undersigned investigator's contact information. § 87(2)(b) provided her neighbor, § 87(2)(b) with the contact information and § 87(2)(b) called the undersigned on January 29, 2008, and left his telephone number on the undersigned's voicemail.

§ 87(2)(b)

§ 87(2)(b) was interviewed at § 87(2)(b) in Brooklyn on January 23, 2008, at approximately 12:26 PM (encl. 14a-d). Present at this interview were Investigator Stacy Paver, Investigator Kathryn Duffy, and § 87(2)(b). On June 20, 2008, § 87(2)(b) provided a follow-up statement via telephone to Investigator Paver (encl. 15). § 87(2)(b) is a § 87(2)(b)-year-old black female § 87(2)(b).

On October 20, 2007, at approximately 11:58 PM, § 87(2)(b) was inside of her house, which is located at § 87(2)(b) in Brooklyn. She was watching television and heard a male voice yell out, "It wasn't me, it wasn't me, I don't have anything." § 87(2)(b) walked upstairs to the fourth floor of her house and looked out the window. She stated that she feared there might be a fight going on outside and she did not want anyone to see her look out the window in case guns were fired. She peered out of the window and observed § 87(2)(b) (identified through the investigation) laying face down on the ground. She never observed how § 87(2)(b) got to the ground. She could not provide a physical description of § 87(2)(b) because his head faced down and she did not pay much attention to him. During her telephone statement on June 20, 2008, § 87(2)(b) stated that she did recall that § 87(2)(b) was a black male, who was between 5'6" and 5'7" tall, and he had a bag with him. § 87(2)(b) did not know who this individual was and she never learned who he was. He was on the sidewalk with PO Brunetti (identified through the investigation), for whom she could not provide a physical description although she believed he wore a uniform¹. § 87(2)(b) assumed that everything was alright outside and she walked down a floor, to the third floor, and looked out of the window again.

§ 87(2)(b) then observed PO Brunetti place handcuffs on § 87(2)(b). There was no struggle between PO Brunetti and § 87(2)(b) while PO Brunetti handcuffed him. She did not hear PO Brunetti say anything and § 87(2)(b)'s was the only voice she heard which is what drew her attention to the window. She did not recall if there were any patrol cars present when it was just PO Brunetti and § 87(2)(b). She stated that § 87(2)(b) was laying on the sidewalk in front of her next-door neighbor's house which is located at § 87(2)(b) in Brooklyn. He was laying face down with his hands handcuffed behind his back and his head was facing her neighbor's gate and his feet faced the street, although he was on a slight angle and was not perfectly perpendicular with the gate in front of her neighbor's house. PO Brunetti stood away from him and did not have any physical contact with him. Her window was closed and she did not have any open windows. From her window she was able to see everything that occurred as she did not have any bars on her window, and there was nothing that obstructed her view. § 87(2)(b) explained that there are bright lights on the building to the left of her house which illuminated the incident location.

After she observed him on the ground and handcuffed, she walked away from the window and continued to watch television. After approximately ten minutes, she heard § 87(2)(b) yell out again and that is when she went back to the window. She stated § 87(2)(b) continued to repeat, "It wasn't me, it wasn't me." When she went to the

¹ PO Brunetti stated that although he wore plainclothes, he was wearing an NYPD jacket.

window this time, she observed PO Wolsky (identified through the investigation) run down Bergen Street from the direction of § 87(2)(b). She did not recall if PO Wolsky exited a vehicle, but she did recall that she saw him run onto the curb from the street and immediately run up to § 87(2)(b) and kick him in the head. § 87(2)(b) did not specify which side of § 87(2)(b)'s head was kicked. When PO Wolsky kicked § 87(2)(b) the latter was still lying on the ground handcuffed and it looked like he was kicked in his upper head near the side of his face and his hairline. PO Brunetti stood away from § 87(2)(b) and did not have physical contact with him when PO Wolsky ran up to § 87(2)(b). § 87(2)(b)'s head was face down when the officer kicked him, and he was kicked only one time. § 87(2)(b) described the kick as very forceful and she explained that PO Wolsky “ran up to him, and kicked his head like a soccer ball.” § 87(2)(b) demonstrated the kick, showing how PO Wolsky fully pulled his leg back and quickly brought it forward with force. PO Wolsky yelled something, but she could not recall what he said. She focused on PO Wolsky because he kicked § 87(2)(b) and she described him as a tall white male with orange or red hair, who was approximately 5’7” tall, weighed between 150 and 160 pounds, and had an average build. PO Wolsky wore plainclothes; she believed he wore boots and jeans.

After he was kicked, PO Brunetti and PO Wolsky searched § 87(2)(b)'s book bag and his pockets. In her telephone statement on June 20, 2008, § 87(2)(b) further explained that she believed § 87(2)(b) was frisked on the outside of his clothing multiple times, although she did not recall which officers or officer did so. She also specifically recalled that § 87(2)(b)'s bag was opened and the contents were searched at least two times. Again, she explained that she could not recall which officer or officers searched the bag. In addition, she stated that she observed an officer place his hand into § 87(2)(b)'s pants pockets and not any other pockets. She stated that she believed the officer who did so was the “detective” with the “orange” hair. § 87(2)(b) stated that she did not observe the officers find anything in his pockets or bag. At the time of § 87(2)(b)'s initial interview, she stated that after § 87(2)(b)'s bag was searched, she heard § 87(2)(b) yell, “I told you I didn’t have nothing.” After he was searched she observed between six and seven officers on the scene and two patrol cars. She did not recall when the patrol cars arrived.

PO Brunetti and PO Wolsky then looked around the location as if they were looking for something in particular. They went into the street and started to look underneath some of the cars.

After § 87(2)(b) was searched, she saw other officers on scene as well as her neighbor, a male from § 87(2)(b) who was outside during this incident. § 87(2)(b) did not wish to provide his name. She did not see any civilians interact with the police. PO Wolsky continued to speak with § 87(2)(b). She then closed her blinds and continued to watch television.

§ 87(2)(b)

§ 87(2)(b) provided her neighbor, § 87(2)(b) with the undersigned investigator’s contact information. § 87(2)(b) called the undersigned on January 29, 2008, and left his telephone number on the undersigned’s voicemail. On February 8, 2008, Investigator Stacy Paver spoke with § 87(2)(b) on the telephone (encl. 16). He stated that he was present during the incident on October 30, 2007. § 87(2)(b) heard a commotion outside, in front of his house on the sidewalk, and decided to walk outside to see what was going on. He did not observe anything from inside of his house. When he went outside, he observed one officer and § 87(2)(b) (identified through the investigation) seated on the floor. He described the officer as a tall, 6’0”, white, officer, and he was very pleasant. § 87(2)(b) looked as though he was seated comfortably on the sidewalk with his hands handcuffed behind his back and he was pleading his innocence as the officer spoke with him. The officer “casually” stood near § 87(2)(b) while they spoke. Neither one of them raised their voices. The officer asked § 87(2)(b) why he continued to run when he was told to stop. § 87(2)(b) approached the officer, and asked, “How are you guys doing tonight, is everything ok?” § 87(2)(b) told the officer that there was a person with a weapon, but he did not know who that person was.

§ 87(2)(b) did not observe any injuries on § 87(2)(b)'s person. He looked at § 87(2)(b)'s face and he did not see any injuries. § 87(2)(b) recalled that § 87(2)(b)'s face was clear and he never saw § 87(2)(b)'s jaw bleeding or anyone hold anything up to his face or chin to stop the bleeding. § 87(2)(b) stayed outside for between ten and fifteen minutes until another officer returned to the location. § 87(2)(b) smoked a cigar and he offered the officers a cigar and they both stated, “No, we don’t smoke.” He did not observe anything else in regard to this incident after he entered his house.

§ 87(2)(b)

On June 9, 2008, Investigator Paver obtained a detailed phone statement from § 87(2)(b) (encl. 17). § 87(2)(b) stated that on October 30, 2007, he came back to his home, which is located at § 87(2)(b) in Brooklyn, from Connecticut. § 87(2)(b) explained that he makes movies and has plastic prop guns. § 87(2)(b) emptied the props from his vehicle and brought them into his house which is located directly in front of a bus stop. He stated that the bus stop is directly outside of the gate to his house with no space between. § 87(2)(b) did not know if anyone else was present because he did not pay attention. § 87(2)(b) stated that although there are street lights, it was still dark and difficult to see. He never observed any individual on the street or anyone in the bus stop. He stated that he never heard anyone speak on a cell phone and never observed a patrol car or any officer command anyone to stop. At no time did § 87(2)(b) run to the side of the house or anywhere, although he stated that his car was parked in the driveway on the side of the house and he went to the side of the house to empty the contents of his vehicle. He did not drop anything while outside of his house.

After he emptied the contents of his vehicle and brought them into the house, it was approximately 12:00 AM and § 87(2)(b) went to his friend's house across the street, approximately five houses away. He did not run to his friend's house. He then stated that he received a phone call from his father stating that the police were at his home between five and ten minutes after he arrived at his friend's house. When § 87(2)(b) arrived at his house, he was informed by officers that there was an individual (whom he never saw or learned of his name) who ran when the police commanded him to stop and that there was no reason for him to run. § 87(2)(b) believed that the officers saw him bring the props into his house. § 87(2)(b) showed the officers his props. They stated that the officers communicated that they observed an open door § 87(2)(b) stated that he did leave the door open) and an individual enter with a weapon, which was why they suspected that someone may have entered the home. § 87(2)(b) stated that his brother, § 87(2)(b) was walking down Bergen Street and observed the male run and the police chase him. § 87(2)(b) communicated to § 87(2)(b) that he heard the police tell the male, "freeze," but the male kept running. § 87(2)(b) did not see anything that occurred with the unidentified male and never observed him.

§ 87(2)(b)

Between June 9, 2008 and June 17, 2008, the undersigned called § 87(2)(b) three times. He was sent a contact letter on June 17, 2008. § 87(2)(b) has yet to respond to any contact attempts.

Officer Statements

PO Jay Wolsky

On October 30, 2007, PO Jay Wolsky, a four-year veteran of the NYPD, assigned to the 77th Precinct Detective Bureau, worked from 4:00 PM through 1:00 AM with PO Joseph Brunetti. They were dressed in plainclothes and they were assigned to an unmarked black Chevy Impala. PO Wolsky is a § 87(2)(b)-year-old white male who is § 87(2)(b) and has red hair and brown eyes. Since the date of the incident, PO Wolsky was promoted to the rank of detective.

PO Wolsky provided the following memo book entries regarding this incident:

At approximately 11:30 PM, § 87(2)(b) and § 87(2)(b) were stopped on § 87(2)(b) Bergen Avenue (encl. 20a-c).

Stop and Frisk Reports

The Stop and Frisk Report prepared for § 87(2)(b) showed that § 87(2)(b) was stopped on October 30, 2007, at 11:20 PM, for carrying objects in plain view that are commonly used in the commission of a crime, actions indicative of casing a victim or location, furtive movements, and actions indicative of engaging in a violent crime. § 87(2)(b) was frisked because a violent crime was suspected and he would not comply with officers' directions.

The report also showed that § 87(2)(b) stated, “I shouldn’t have run, I was wrong, I saw a gun.” The report showed that he was frisked and not searched (encl. 18a-b).

The Stop and Frisk Report prepared on October 30, 2007, at 11:40 PM, for § 87(2)(b) showed that he was stopped for carrying an object in plainview commonly used in the commission of a crime. § 87(2)(b) was neither frisked nor searched. He stated, “I brought the gun inside, I make films.” The report showed that the weapon was an imitation assault rifle (encl. 19a-b).

On January 31, 2008, PO Wolsky was interviewed at the CCRB (encl. 22a-d).

At approximately midnight, PO Wolsky drove an unmarked Chevy Impala and PO Brunetti was seated in the passenger seat. He drove down Bergen Street and when he approached § 87(2)(b) he observed two males, § 87(2)(b) and § 87(2)(b) who stood approximately a “cross-walk” distance away from the patrol car. Nothing obstructed PO Wolsky’s view of the two males. He did not receive any radio calls regarding this incident. § 87(2)(b) had an assault rifle in his hands. PO Wolsky stated that PO Brunetti observed the assault rifle as well and they did not have any conversation in the vehicle in regard to this observation. PO Wolsky approached § 87(2)(b) and § 87(2)(b) with the patrol car and stated, “Police, don’t move.” PO Wolsky stated that the incident happened very quickly and he did not know whose decision it was to stop these individuals, although he is the one who turned on the sirens, approached the individuals, and commanded them not to move. § 87(2)(b) and § 87(2)(b) stood on the sidewalk, very close to one another, although he could not articulate in inches or feet how far. It appeared that they were together. PO Wolsky did not know if they were engaged in conversation, and he observed the assault rifle in § 87(2)(b)’s hand only. He did not observe if § 87(2)(b) was holding anything at this time. He never saw § 87(2)(b) hold a cell phone and he did not observe the back pack § 87(2)(b) wore until later when § 87(2)(b) began to run. When PO Wolsky put the siren on, § 87(2)(b) ran into an alley between two houses with the assault rifle. § 87(2)(b) ran down Bergen Street. PO Wolsky stated that no officer followed § 87(2)(b) into the alley.

PO Brunetti jumped out of the car and chased after § 87(2)(b) and yelled, “Stop, police” less than thirty seconds after they made the observation of the two males. When § 87(2)(b) began to run, he turned the corner from § 87(2)(b) to Bergen Street and it looked like he threw something into the street by extending his hand in a throwing motion as he ran. PO Wolsky did not recall which arm he threw the object with and he could not describe the object he possibly threw. PO Wolsky explained that it happened very fast and nothing blocked his view, although it was dark outside and § 87(2)(b) was running.

PO Wolsky then put the car in reverse, put the lights and sirens on, and observed § 87(2)(b) run across the street to go down Bergen Street. PO Wolsky observed § 87(2)(b) squeeze between two cars and then observed him on the ground. PO Wolsky initially stated that he did not observe how § 87(2)(b) got to the ground. PO Wolsky later stated that he observed § 87(2)(b) fall as he ran between the cars. § 87(2)(b) ran very fast and PO Brunetti was right next to him when he fell. PO Wolsky lost sight of § 87(2)(b) for only a second. The sirens were on the entire time he chased § 87(2)(b). PO Wolsky could not articulate the period of time that PO Brunetti was alone with § 87(2)(b) before he approached them, although he stated that it was “quick” and could have been a few seconds. While PO Wolsky was inside of the vehicle, he did not observe the interaction between PO Brunetti and § 87(2)(b). PO Wolsky did not know if PO Brunetti had his gun pointed at § 87(2)(b) at any time.

PO Wolsky stopped the vehicle and ran down the street over to where PO Brunetti and § 87(2)(b) stood and he helped PO Brunetti handcuff § 87(2)(b). PO Wolsky helped with the handcuffing by clicking one of the handcuffs on § 87(2)(b)’s hand. He did not have to restrain § 87(2)(b) while he handcuffed him and he did not make any other physical contact with him during the handcuffing. He did not recall where § 87(2)(b)’s head was when he was being handcuffed or if his head made any contact with the ground. PO Brunetti was already in the process of handcuffing § 87(2)(b) when he approached. PO Brunetti did not have his knee on § 87(2)(b)’s back and he was not trying to restrain him. PO Brunetti leaned over to handcuff § 87(2)(b) and he was not on the ground. § 87(2)(b) lay face down on the ground and it appeared that his arm was tangled up in a “string bag” (sports back pack with strings as the straps). PO Wolsky did not observe any type of struggle between § 87(2)(b) and PO Brunetti when he approached. PO Wolsky did not draw or point his weapon because § 87(2)(b) was already on the ground when he exited the patrol car.

PO Wolsky feared § 87(2)(b) might have a firearm because he was observed with an individual in possession of an assault rifle. Prior to handcuffing § 87(2)(b) PO Wolsky did not have any other physical contact with § 87(2)(b). PO Wolsky did not kick § 87(2)(b) in the face at any time and he did not have any concern that § 87(2)(b) had any struggle with his partner. § 87(2)(b) did not have any injuries and he did not complain of any injuries.

After § 87(2)(b) was handcuffed, he was frisked while he was still on the ground but PO Wolsky stated that he was never searched. § 87(2)(b) was being loud and he stated that he was unsure if it was because he was out of breath that he spoke loudly. He was picked up off of the floor and PO Wolsky then pat-frisked § 87(2)(b) again as he stood to make sure that he did not have any weapons after he was observed with an individual who possessed of an assault rifle. PO Wolsky stated that when one person has a firearm, the other person with him may have one. PO Wolsky also stated that it was unusual that § 87(2)(b) ran and he frisked him for the safety of the officers. At no time did any officer go into any of § 87(2)(b)'s pockets, take anything out of his pockets, go into his jacket, or search his book bag. PO Wolsky observed a tangled-up jump rope coming out of the book bag. PO Wolsky then stated that he was not concerned that there was any contraband in his book bag. When he stood § 87(2)(b) up, he had no injuries and he was not bleeding anywhere, including his face or his jaw. Neither he nor PO Brunetti used one of § 87(2)(b)'s T-shirts to wipe any blood off of his face.

Officers from an unknown precinct drove by and asked if they needed help minutes after they stopped § 87(2)(b). The officers were in uniform from an unknown command. PO Wolsky informed them that they did not need help. PO Wolsky and PO Brunetti did not make any radio calls in regard to the stop. At no time did he or PO Brunetti leave with either of the officers who offered assistance.

PO Brunetti left to search for any possible contraband that § 87(2)(b) may have thrown or dropped while he ran. PO Wolsky could not recall how long PO Brunetti left to search. While PO Brunetti went to search for anything that § 87(2)(b) dropped, PO Wolsky asked § 87(2)(b) if he had thrown anything when he ran and § 87(2)(b) replied that he did not know. PO Wolsky stayed with § 87(2)(b) the entire time. PO Wolsky continued to question him. He asked why he was running and § 87(2)(b) replied that he did not know. When PO Wolsky asked § 87(2)(b) if he had identification on his person, § 87(2)(b) replied that he did not. § 87(2)(b) then asked PO Wolsky why he was stopped. PO Wolsky informed him that he was observed with a male who was in possession of an assault rifle on § 87(2)(b). After PO Wolsky explained this to him, § 87(2)(b) stated, "Yea, that's why I ran." PO Wolsky then told him that he initially asked him why he ran and he stated that he did not know. PO Wolsky further explained to § 87(2)(b) that it was police procedure when they stop somebody that they complete a Stop-and-Frisk report for them. After PO Wolsky explained this, § 87(2)(b) stated that he had identification. PO Wolsky informed § 87(2)(b) that he was stopped because of the individual with a gun, but he never asked any questions regarding having any guns or weapons on his person.

§ 87(2)(b) gave PO Wolsky his identification and PO Wolsky told § 87(2)(b) that he was from the robbery unit and that they had an ongoing situation of robberies from § 87(2)(b). § 87(2)(b) did not ask him for his name or badge number and PO Wolsky did not recall if he asked PO Brunetti for his. PO Brunetti was unable to uncover any contraband through his search and § 87(2)(b) was un-handcuffed. § 87(2)(b) apologized to PO Wolsky and stated that he was wrong for running.

PO Wolsky did not recall if any by-standers were present and he did not recall any individuals who exited their houses. He never observed a man with a cigar outside.

PO Wolsky then went with PO Brunetti to the location where they first observed § 87(2)(b) and § 87(2)(b). They noticed a brownstone at § 87(2)(b) with a lit apartment, which is the house that was next to the alley in front of which they observed § 87(2)(b) stand. They knocked on the door. An unidentified male answered the door. They asked him if anyone came into their house with a gun or they observed anyone in the alleyway and he stated, "No." He invited the officers in. The male who answered the door made a few phone calls to see if anyone else was aware of anything. He called his son who came in from the street. § 87(2)(b) stated he was moving his firearm from his vehicle into the house and explained that the weapon was an imitation pistol and he is an independent film maker. § 87(2)(b) had numerous other imitation guns in the house. PO Wolsky explained that the gun looked like a real gun when he observed it. PO Wolsky and PO Brunetti explained to § 87(2)(b) that

another individual was stopped because they thought that he was with him. PO Wolsky obtained § 87(2)(b)'s identification.

PO Joseph Brunetti

On October 30, 2007, PO Joseph Brunetti, a ten-year veteran of the NYPD, assigned to the 77th Precinct Detective Robbery Squad, worked from 4:00 PM through 1:00 AM with PO Jay Wolsky. They were assigned to investigate burglaries, robberies, and grand larcenies. He wore plainclothes, an NYPD raid jacket, and was assigned to an unmarked navy or dark colored vehicle. PO Brunetti is a § 87(2)(b)-year-old white male who § 87(2)(b) has brown hair and brown eyes.

PO Brunetti did not make any memo book entries regarding this incident.

On April 4, 2008, PO Brunetti was interviewed at the CCRB (encl. 23a-d). § 87(2)(g)

PO Brunetti's initial observation of § 87(2)(b) and § 87(2)(b) was consistent with PO Wolsky's initial observations.

PO Brunetti turned to PO Wolsky and stated, "Jay, that guy's got a gun." PO Brunetti exited the patrol car and stated, "Police." He did not know if at any time PO Wolsky turned on the lights or sirens on the patrol car. § 87(2)(b) immediately ran into a driveway on § 87(2)(b) behind the second or third house from the corner and § 87(2)(b) ran westbound on Bergen Street after § 87(2)(b) had already started to run. Neither § 87(2)(b) nor § 87(2)(b) began to run until after PO Brunetti exited the patrol car. § 87(2)(b) started to run as if he was trying to get away from PO Brunetti. PO Brunetti did not know if § 87(2)(b) was still in possession of the assault rifle when he ran. After PO Brunetti exited the patrol car, he did not know which direction PO Wolsky initially drove.

PO Brunetti chased § 87(2)(b) down Bergen Street and he yelled between three and four times, "Police, don't move." PO Brunetti did not believe that § 87(2)(b) was a victim of the male with an assault rifle because when he exited the patrol car, he was wearing a raid jacket that stated NYPD on it and he also verbally stated that he was the police. § 87(2)(b) ran, which made PO Brunetti believe he was with § 87(2)(b). As PO Brunetti is assigned to investigate burglaries, robberies, and grand larcenies, the observation of § 87(2)(b) with a firearm lead PO Brunetti to suspect § 87(2)(b) to be in possession of a firearm or suspect him of a home invasion. PO Brunetti never communicated to PO Wolsky which individual he was going to run after. He decided to run after § 87(2)(b) because he was the closest to him when he exited the patrol car.

PO Brunetti had his gun drawn while he ran because § 87(2)(b) had a weapon and § 87(2)(b) could have had one as well. PO Brunetti never pointed his gun at § 87(2)(b) but he held it facing downward. At no time did PO Brunetti have any radio communications with PO Wolsky while he ran and he stated that he did not even know where PO Wolsky was. Midway down the street on Bergen Street, § 87(2)(b) ran between two parked cars and he fell onto the sidewalk. § 87(2)(b) fell face-down onto the ground. During his interview, PO Brunetti was asked if § 87(2)(b)'s face made contact with the ground and PO Brunetti responded that he did not observe if this occurred. When PO Brunetti approached § 87(2)(b) he placed his gun back in the holster. § 87(2)(b) "scrambled" to get back up and PO Brunetti grabbed him and "tackled" him back down. PO Brunetti was lying on top of § 87(2)(b) and attempted to grab his arms to handcuff him, but § 87(2)(b)'s hand was tangled up in his string book bag. PO Brunetti did not recall if he ever radioed for backup or to notify anyone that there was an unapprehended male with a gun. From when PO Brunetti first made physical contact with § 87(2)(b) to the time when PO Wolsky arrived was approximately a few seconds.

While PO Brunetti attempted to place § 87(2)(b) in handcuffs, PO Wolsky approached the scene from behind PO Brunetti and they both attempted to handcuff § 87(2)(b). PO Brunetti did not know if PO Wolsky had his weapon drawn or pointed. PO Brunetti stated that no officer kicked § 87(2)(b) in the face. Because § 87(2)(b)'s arms were tangled up in the backpack, both he and PO Wolsky attempted to untangle § 87(2)(b) to

place him in handcuffs. While § 87(2)(b) was on the ground, the only physical contact any officer had with him was to handcuff him.

PO Brunetti then frisked § 87(2)(b)'s backpack and frisked § 87(2)(b) on his back on his sides while § 87(2)(b) was lying on the ground handcuffed. PO Brunetti never went into any of § 87(2)(b)'s jacket pockets and he never looked inside of his book bag. He did not look inside the book bag because when he touched the outside of the bag, he did not feel a gun. When § 87(2)(b) ran between the cars, it appeared that he may have thrown something because he made a motion where he threw his hand upward. PO Brunetti walked between the cars and did a quick search to see if he could find anything; he was most concerned about finding a weapon. At no time did PO Brunetti observe PO Wolsky frisk or search § 87(2)(b)'s person or his bag.

PO Brunetti did not have any verbal interactions with § 87(2)(b) aside from commanding him to stop because as soon as PO Wolsky arrived on the scene, PO Brunetti left to look for what § 87(2)(b) possibly threw and he also went back to the location where he first observed the two individuals on § 87(2)(b). § 87(2)(b) never communicated to PO Brunetti about seeing a male with a gun because they did not have any verbal interaction.

At the location where PO Brunetti initially observed § 87(2)(b) and § 87(2)(b) stand, PO Brunetti walked up the stairs to the front door and walked into the door, which was already open. He was between four and five steps in the house. The lights were on and he was trying to be quiet to see if he could hear if anything was going on. An older black male walked down the stairs and asked if he could help PO Brunetti. PO Brunetti asked him if he was alright and if he lived in the house. The male replied that he did live there and that everything was fine. PO Brunetti asked if there was anything going on in the house that he should know about and the unidentified male stated that nothing was wrong. PO Brunetti explained to him what he observed in front of the house. The unidentified male then called over another unidentified black male with dreadlocks. PO Brunetti explained to him what was going on and he stated, "Let me talk to my nephew."

§ 87(2)(b) walked into the front door of the house with a bag from the store. The unidentified male with the dreadlocks asked § 87(2)(b) if he knew what PO Brunetti was talking about. § 87(2)(b) explained that he was a film producer and the gun was a prop. He showed PO Brunetti the prop and other guns that were props. PO Brunetti stated that the assault rifle that they observed was actually a firearm, but it did not have the capability to shoot a bullet. PO Brunetti stated that it looked like a real assault rifle. § 87(2)(b) also showed PO Brunetti a video that he made. PO Brunetti did not take any information from this male.

PO Brunetti then went back to where PO Wolsky was and informed him that the gun was a prop. Approximately twenty minutes passed from the time PO Brunetti left PO Wolsky and § 87(2)(b) went to the house, and came back to where PO Wolsky and § 87(2)(b) stood. When he came back, he observed PO Wolsky taking down § 87(2)(b)'s pedigree information.

At no time did PO Brunetti observe § 87(2)(b) bleeding. He did not notice any injuries on § 87(2)(b)'s person. He never observed him hold a t-shirt to his face. Uniformed officers arrived on the scene and they were present when PO Brunetti returned. He stated they just stood around and he did not know how they learned of this incident. PO Brunetti did not hear any conversation between PO Wolsky and § 87(2)(b) at any time. He did not recall if § 87(2)(b) asked for PO Wolsky's name or shield number and § 87(2)(b) never asked for his.

Medical Records

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

Police Documents

77th Detective Squad Roll Call

The 77th Detective Squad roll call showed that PO Wolsky worked from 3:45 PM through 1:00 AM. PO Brunetti worked from 4:00 PM through 1:00 AM. Both PO Wolsky and PO Brunetti were assigned to the C team, robbery squad (encl. 25a-e).

Civilian CCRB Histories and Arrest Histories

§ 87(2)(b) had not previously filed any CCRB complaints. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Officer CCRB Histories

PO Joseph Brunetti is a four-year veteran of the NYPD with no substantiated allegations on his record (encl. 8). PO Jay Wolsky is an eleven-year veteran of the NYPD with no substantiated allegations on his record (encl. 7).

Conclusions and Recommendations

Officer Identification and Pleading Allegations

There is no dispute that PO Brunetti and PO Wolsky were present during this incident. § 87(2)(b) was able to provide detailed descriptions of each of the officers and he was able to articulate which officers he interacted with and what the natures of those interactions were. PO Brunetti and PO Wolsky were able to articulate their roles in this incident which not only corroborates § 87(2)(b)'s statement, but also corroborates § 87(2)(b)'s statement.

§ 87(2)(b) stated that PO Brunetti is the officer that chased him, commanded him to stop, approached him with his gun pointed, and then proceeded to frisk and search his person as well as his book bag. § 87(2)(b) also articulated that PO Brunetti was the only officer to frisk and search him. Although § 87(2)(b) articulated that § 87(2)(b)'s pockets and book bag were searched, she stated that she could not recall which officer or officers did so. PO Brunetti stated that he is the officer that had his gun drawn while he chased § 87(2)(b) commanded him to stop, and frisked § 87(2)(b) and his book bag. Allegations A, B, C and D are being pled against him.

§ 87(2)(b) alleged that he was kicked in the face by the officer that approached the scene after he was already stopped by PO Brunetti. PO Wolsky corroborates that he arrived after PO Brunetti had already stopped § 87(2)(b). In addition, § 87(2)(b) articulated that PO Wolsky kicked § 87(2)(b) in the face as she was able to provide a physical description of PO Wolsky. She stated that he had red hair, which PO Wolsky does have, and she was able to describe that he wore plainclothes; boots and jeans. Therefore Allegation E is being pled against him. In addition, § 87(2)(b) alleged that he asked PO Wolsky for his name. As § 87(2)(b) articulated which officer he asked, Allegation F is being pled against PO Wolsky.

Notice of Claim Status

§ 87(2)(b) did not file a Notice of Claim (encl. 26).

Undisputed Facts

On October 30, 2007, at approximately 11:56 PM, § 87(2)(b) stood at a bus stop on § 87(2)(b) near Bergen Street in Brooklyn. § 87(2)(b) was observed holding what appeared to be an assault rifle by PO Brunetti, PO Wolsky, and § 87(2)(b). § 87(2)(b) was never seen holding a weapon. § 87(2)(b) ran from the bus stop, made a left on Bergen Street, and proceeded to run to the middle of the block, between § 87(2)(b). PO Brunetti chased § 87(2)(b) and commanded him to stop. While § 87(2)(b) was on the ground, he was frisked and handcuffed. PO Wolsky drove the patrol car to where PO Brunetti and § 87(2)(b) were and exited the patrol car. It was later verified that § 87(2)(b) had an imitation assault rifle in his possession that he uses as a movie prop and § 87(2)(b) did not have any weapons on his person. § 87(2)(b) was uncuffed and was not arrested or issued a summons. A stop and frisk report was prepared in regards to the stop.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

This incident was reported to IAB seven hours after it occurred. § 87(2)(b) did not file a Notice of Claim and stated that he filed this complaint because of the injury he sustained to his face.

By all accounts, § 87(2)(b) was holding an assault rifle which was later determined to be an imitation gun, though both officers and § 87(2)(b) initially believed it was a real firearm.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

[illegible]

Allegation A: Abuse of Authority: PO Joseph Brunetti stopped § 87(2)(b)
Allegation C: Abuse of Authority: PO Joseph Brunetti frisked § 87(2)(b)

“reasonable suspicion that a person is committing, has committed, or is about to commit a felony or Penal Law misdemeanor (encl. 1).”² § 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] It is
therefore recommended that **Allegations A and C** be closed as *Exonerated*.

⁴ NYPD Street Encounters-Legal Issues PD 344-153.

Allegation B: Use of Force: PO Joseph Brunetti pointed his gun at § 87(2)(b)

§ 87(2)(g)

“An officer can draw his firearm and point it at another person so long as he has reasonable fear for his safety” and the Police Department “permits an officer broad discretion to display his weapon whenever he feels that his life or the life of another is endangered (encl. 3a-c).”⁵ It is therefore recommended that **Allegation B** be closed as *Exonerated*.

Allegation D: Abuse of Authority: PO Joseph Brunetti Searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) s pants pockets, jacket, and book bag were searched. PO Brunetti stated that he did not search § 87(2)(b) or his book bag because he did not feel any weapons during the pat-down. PO Brunetti stated that he did not search § 87(2)(b) because he did not have grounds to do so given that he did not feel anything which could have been a weapon during the frisk nor did he state that any other factors gave rise to probable cause. A search may only be conducted if a frisk “reveals an object which may be a weapon (encl. 2a-b).”⁶ § 87(2)(g)

“is punishable misconduct if the officer acted with knowledge that he was acting improperly, acted without concern for the propriety of his actions, or acted without due reasonable care that his actions be proper (encl. 4a-b).”⁷ It is therefore recommended that **Allegation D** be closed as *Substantiated*.

Allegation E: Use of Force: PO Jay Wolsky used force against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) In regard to NYPD guidelines, “Only that amount of force necessary to overcome resistance will be used to effect an arrest (encl. 5a-b).”⁸ In this instance, PO Wolsky stated that he did not observe § 87(2)(b) to struggle with PO Brunetti. § 87(2)(b) stated that when PO Wolsky kicked § 87(2)(b) PO Brunetti was not in any type of physical struggle with § 87(2)(b) § 87(2)(g)

It is therefore recommended that **Allegation E** be closed as *Substantiated*.

Allegation F: Abuse of Authority: PO Jay Wolsky refused to provide his name to § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as *Unsubstantiated*.

§ 87(4-b) § 87(2)(g)

⁵ *Police Department v. Gliner*, OATH Index No. 955/00 (Sept. 6, 2000) pgs. 14-15.

⁶ New York City Police Department Patrol Guide Manual § 212-11.

⁷ *Police Department v. Robert Dowd and Vincent Rose*, OATH Index No. 1189/90, 1190/90 pg. 3.

⁸ Kamins, Barry. New York City Police Department Patrol Guide Manual. § 203-11.

⁹ New York City Police Department Patrol Guide Manual § 212-08 (1)(c)(5).

Investigator: Stacy Paver

Date: July 17, 2008

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: